

26SMCV03898 26SMCV03898

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-09-15

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The court is inclined to GRANT the application. The court has seen the opposition noting that there does not seem to be an emergency here.

And the court agrees that there does not seem to be an emergency. The problem is that the UD timeline is deliberately short by legislative directive.

Here, the demurrer was filed on August 5 but the hearing is now set for November 2—almost three months.

Defendant states that this is the earliest date available. The court is not sure that is correct—the court has looked at its docket and there seem to be a number of open dates before then. But the fact remains that the Legislature has deemed that the matter will be heard within 7 court days and right now it is closer to 60.

Therefore, the court will set the matter for either Monday October 12 or Wednesday October 15. The court would set it earlier, but the court cannot hear it this week and the court will be dark from then until October 7, which means that its calendars upon return are remarkably bleak. Needless to say, this ought not be taken as any indication as to how the court will rule on the merits. (Ever notice how whenever one begins a sentence with “needless to say” the speaker then goes ahead and says it?)